MOSES CHAMBE
and
BULISA MBANO
and
TAPIWA MUKUNGUNUGWA
and
REGGIE FRANCIS SARUCHERA
versus
MOSES MAX KUDZANAI CHIKIWA
and
THE EXECUTIVE SECRETARY, EAST ZIMBABWE CONFERENCE
and
THE EXECUTIVE SECRETARY ZIMBABWE EAST UNION OF CONFERENCES

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 12 February & 20 April 2026

CHAMBER APPLICATION

N Chikonamombe with *D Nyathi*, for the applicants
A Kadye, for the 1st respondent
E T Moyo, for the 2nd and 3rd respondents

MANZUNZU J

INTRODUCTION

(1) This is a chamber application for upliftment of bar, condonation and extension of time within which to file a notice of opposition under case no: HCH 5547/25 made in terms of Rule 39(4) (a) of the High Court Rules, 2021. The applicant is seeking a relief couched as follows:

1. "The bar operating against the applicants under HCH5547/25 as a result of failure to file a notice of opposition in terms of Rule 59(7), (8) and (9) of the High Court Rules, 2021 be and is hereby uplifted.
2. The application for condonation for non- compliance with Rule 59(7), (8) and (9) of the High Court Rules, 2021 be and is hereby granted.
3. The applicants be and are hereby extended ten (10) days within which to file a notice of opposition under HCH554/25, reckoned from the date of granting of this order.
4. The 1st respondent shall bear the costs on a punitive scale if he opposes the instant application."

(2) The 1st respondent opposed the application.

(3) The applicants have challenged the validity of the opposing affidavit which carries with it a computer generated date as the date of execution.

BACKGROUND

(4) The 1st, 2nd, 3rd and 4th applicants are members of the Glen City Campsite Development Committee, a sub – committee established by the Glen City Camp Development Association, the holder of rights and interest in a certain piece of land called Glen PC City of Mayfair, measuring 41. 1513 hectares, situate in the District of Goromonzi.

(5) The Glen City Camp Development Association is a holder of rights and interests by virtue of a notarial lease of agreement between the Minister of Lands Agriculture, Fisheries, Water and Rural Development and them.

(6) The 1st respondent filed a court application against the applicants on 31 October 2025 under case number HCH 5547/25 challenging the decision by the applicants to expel the 1st respondent from the Glen City Campsite Development Committee.

(7) The applicants failed to file their notice of opposition within the *dies* set by the rules hence this application for upliftment of the bar.

(8) The 1st respondent has filed a notice of opposition whose validity is under challenge by the applicants on the basis that it was improperly commissioned. The applicants state that it bears a computer-generated date, contrary to the law which requires the commissioner of oaths to endorse a date on the affidavit.

(9) The fact that the date on the opposing affidavit is computer generated is common cause. The issue is whether such affidavit is valid at law. The applicants say it is not, and the 1st respondent say it is valid.

THE LAW

(10) The definition of an affidavit and the general requirements for a valid affidavit are stated in *Mike Mandishayika* v *Maria Sithole* HH 798/15, where the court stated that:

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."

(11) The court in *Mafiosi 2931898* v *Mushoriwa & Ors* HMA 1-25 the court stated that:

> "The first being the computer generated one complained about and the second appears on the commissioner of oaths' date stamp. I do not believe that the mere fact that one date stamp is computer generated serves to invalidate the affidavit. That argument would perhaps have carried the day if the dates were different or if the computer - generated date stamp was the only date affixed thereon. Ultimately therefore I find no merit in this objection based on the alleged defectiveness of the second respondent's affidavit."

(12) In *Sarpo* v *Williams & Ors* HH 493-23 the court stated that computer generated dates make it difficult to ascertain whether the deponent was in fact before a commissioner of oaths. It stated that;

> "A computer-generated date in my view makes it difficult to know whether the deponent appeared before the commissioner of oaths on the same date printed on the affidavit. As submitted by applicant, correctly so in my view, what is key is that the oath, signing and date should happen contemporaneously. The date portion must be blank so that the Commissioner of Oaths endorses the date."

(13) The court in *Zinyama* v *Kativhu & Anor* HH 168-25 emphasised the position stated in *Sarpo supra* when it stated that:

> "In that case she lay stress on the fact that a commissioner ought to write in the date himself in order for courts to undeniably accept the affidavit to be valid as this will prove that the events took place at the same time without doubt. In this case surely "…one wonders whether the oath was administered on the date specified by the computer or on a future date…." as DEME J rightfully stated in *Bruce Ndoro & Fungayi Ndoro v Conjugal Enterprises (Private) Limited supra*, a similar matter. Proper commissioning of the founding affidavit is crucial, and parties are expected to follow the necessary requirements regarding this."

See *Zinyemba* v *Nyakamha & Ors* HH 108-24

ANALYSIS

(14) In the present matter the applicant alleges that there is no valid notice of opposition because there is a computer-generated date. The commissioner oaths did not endorse a date on the affidavit. In the *Mafiosi* case *supra*, the court stated it could not invalidate the affidavit because there were two dates, one computer generated and the other was the commissioner of oaths stamp. In the present matter there is only a computer-generated date which makes it difficult to determine whether the deponent was in fact before a commissioner of oaths. The oath, signing and date should happen contemporaneously. A commissioner of oaths ought to write the date himself for courts to undeniably accept the affidavit to be valid as this will prove that the events took place at the same time without doubt. Therefore, the notice of opposition is invalid, and the preliminary point is upheld.

DISPOSITION

1. The preliminary point raised by the applicants challenging the validity of the 1st respondent's opposing affidavit is upheld with costs.

2. The 1st respondent's opposing affidavit be and is hereby expunged from the record.

3. The application is referred to the unopposed roll.

MANZUNZU J ……..

Chimuka Mafunga Commercial Attorneys, applicants' legal practitioners
Linda and Ashley Attorneys, first respondent's legal practitioners
Mushoriwa Moyo, first and second respondents' legal practitioners.